

24STCV34409 24STCV34409

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-24

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Case Number: 24STCV34409 Hearing Date: August 24, 2026 Dept: 512

HEARING DATE: Mon., August 24, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Paterson v. VW Group of America, Inc., COMPL.

FILED: 12-30-24

et al.

CASE NUMBER: 24STCV34409

NOTICE: OK

PROCEEDINGS: DEFENDANTS' MOTION FOR TERMINATING AND MONETARY SANCTIONS

MOVING PARTY: Defendants Volkswagen Group of America,
Inc., and Volkswagen of Garden Grove

RESP. PARTY: Plaintiff

Sharon Paterson

MOTION FOR
TERMINATING AND MONETARY SANCTIONS

(CCP §§ 2023.010, 2023.030)

TENTATIVE RULING:

Defendants Volkswagen

Group of America, Inc., and Volkswagen of Garden Grove's Motion to Impose

Terminating and Monetary Sanctions is GRANTED as to the request for terminating sanctions.

Moving parties are ordered
to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on June 26, 2026 ☐
Late ☐ None

REPLY: None
filed as of August 19, 2026 ☐ Late ☒
None

ANALYSIS:

I.
Background

On December 30, 2024, Plaintiff Sharon
Paterson ("Plaintiff") filed a Complaint for Violation of Statutory Obligations
against Defendants Volkswagen Group of America Inc. ("VW Group") and Volkswagen
of Garden Grove ("VW Garden Grove") ("Defendants") and Does 1-10.

On May 30, 2025, Defendants,
respectively, filed Answers to the Complaint.

On January 27, 2026, the Court granted
VW Group's Motions to Compel Further Responses to VW Group's Form

Interrogatories, Special Interrogatories, Requests for Admissions, and Requests for Production of Documents and requests for sanctions in the total amount of \$1,820.00. (1/27/26 Order.) The Court ordered Plaintiff to produce further responses to the subject discovery within 30 days of notice of ruling. (1/27/26 Order.)

On February 27, 2026, the Court denied VW Group's Motion to Compel Deposition of Plaintiff as moot and denied Defendant's request for sanctions. (2/27/26 Order.)

On March 26, 2026, the Court held an Informal Discovery Conference. (3/26/26 Order.)

On May 14, 2026, the Court granted VW Group's Motion to Compel Compliance with the Court's January 27, 2027, Order and Request for Monetary Sanctions in the amount of \$1,245.00. (5/14/26 Order.) Further, the Court granted VW Group's Motion to Compel Vehicle Inspection and Request for Monetary Sanctions in the amount of \$850.00. (5/14/26 Order.) Finally, the Court granted in part and denied in part VW Group's Motion to Compel Plaintiff's Deposition and Production of Documents and Request for Sanctions – the Motion was granted as to the request to compel Plaintiff's deposition and production of documents but denied as to its request for sanctions. (5/14/26 Order.)

On June 3, 2026, Defendants filed the instant Motion to Impose Terminating and Monetary Sanctions against Plaintiff (the "Motion").

On June 8, 2026, the Court granted Defendants' Ex Parte Application for an Order Advancing the Hearing of the Motion for Terminating Sanctions pursuant to oral stipulation of the parties. (6/8/26 Order.) The Court also granted Plaintiff's Ex Parte Application to Advance of the Hearing on Motion to be Relieved as Counsel pursuant to oral stipulation of the parties. (6/8/26 Order.)

On June 16, 2026, the Court granted VW Garden Grove's Motions to Compel Further Responses to Form Interrogatories, Special Interrogatories, and Requests for Admission with certain exclusions. (6/16/26 Order.)

On June

26, 2026, Plaintiff filed an Opposition to the Motion, wherein Plaintiff's counsel stated Plaintiff's counsel had lost communication with Plaintiff.

That
same day, Plaintiff also filed a Notice of Payment of Monetary Discovery Sanctions.

On June
30, 2026, the Court continued the hearing on the Motion.

On July 8, 2026, and July 30, 2026,
Plaintiff filed Notices of Payment of Monetary Discovery Sanctions.

On July 22, 2026, the Court granted in
part and continued in part the Motion. (7/22/26 Order.) The Court granted the Motion as to monetary sanctions in favor of Defendants and against Plaintiff in the amount of \$960.00, payable by Plaintiff to Defendant within 30 days of the Court's order. (7/22/26 Order.) The Court otherwise continued the Motion. (7/22/26 Order.)

On July 27, 2026, Plaintiff filed
Notice of the continued hearing date on the Motion.

On August 17, 2026, Plaintiff filed
Notice of Payment of Monetary Discovery Sanctions.

To date, no Reply to the Motion has
been filed.

II.
Legal
Standard

Under Code of Civil Procedure section
2025.450, "[i]f [a] party ... fails to obey an order
compelling attendance, testimony, and production, the court may make those
orders that are just, including the imposition of an issue sanction, an
evidence sanction, or a terminating sanction under Chapter 7 (commencing with
Section 2023.010) against that party deponent or against the party with whom
the deponent is affiliated. In lieu of, or in addition to, this sanction, the

court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2025.450, subd. (h).)

Under Code of Civil Procedure section

2030.290, "[i]f a party ... fails to obey an order compelling answers [to interrogatories], the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2030.290, subd. (c).)

Under Code of Civil Procedure section

2031.300, "[i]f a party ... fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2030.290, subd. (c).)

The "court, after notice to any affected party, person, or attorney, and after an opportunity for hearing, may impose" monetary, issue, evidence, or terminating sanctions "against anyone engaging in conduct that is a misuse of the discovery process[.]" (Code Civ. Proc., §§ 2023.030; 2023.030, subds. (a)-(d).) Failing to respond or submit to an authorized method of discovery and disobeying a court order to provide discovery are misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d) and (g).)

The court may impose a terminating sanction by one of the following orders:

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or any

part of the action, of that party.

(4) An order rendering a judgment by default against that party.”

(Code Civ. Proc., § 2023.030, subd. (d).)

The court should look to the totality of the circumstances in determining whether terminating sanctions are appropriate. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) Ultimate discovery sanctions are justified where there is a “willful” discovery order violation “preceded by a history of abuse,” and evidence showing that “less severe sanctions would not produce compliance with discovery rules.” (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) “[A] penalty as severe as dismissal or default is not authorized where noncompliance with discovery is caused by an inability to comply rather than willfulness or bad faith.” (Brown v. Superior Court (1986) 180 Cal.App.3d 701, 707.)

III.

Discussion

Defendants

move for terminating and monetary sanctions against Plaintiff and Plaintiff’s counsel under Code of Civil Procedure sections 128, 2031.310, 2031.320, and 2023.030, et seq. on the grounds that “Plaintiff has engaged in a sustained pattern of gamesmanship, obstruction, and noncompliance throughout this litigation. Plaintiff failed to provide substantive discovery responses, ignored multiple meet-and-confer efforts, disobeyed court orders compelling discovery, failed to appear for deposition, failed to produce the Subject Vehicle for inspection absent court intervention, and engaged in the spoliation of evidence directly relevant to her claims and [VW Group]’s defenses.” (Notice of Motion, Motion, p. 13, Yelda Decl., ¶ 22.)

The Court

finds Defendants are entitled to sanctions under Code of Civil Procedure sections 2023.010, 2023.030, 2025.450, 2030.290, and 2031.300 based on Plaintiff’s failure to comply with discovery obligations and to obey multiple court orders. Notably, “[t]he court [is] not required to allow a pattern of abuse to continue

ad infinitum.” (See *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 280.) Considering the Court repeatedly ordered Plaintiff to provide various discovery responses and/or a vehicle inspection on January 27, 2026, May 14, 2026, and June 16, 2026, and no such responses or inspection have been provided as of the filing of the instant Motion, and the Court ordered Plaintiff’s deposition on May 14, 2026, and there has been no deposition as of the filing of the instant Motion, the Court finds the imposition of terminating sanctions to be just.

While the opposing papers previously stated Plaintiff’s counsel had lost communication with Plaintiff (see Opp.), the Court acknowledges that Plaintiff’s counsel represented at the 7/22/26 hearing that he resolved issues with Plaintiff and withdrew his motion to be relieved as counsel. (See 7/22/26 Order.) However, the Court finds there has not been any indication or substantive action in this case by Plaintiff since then that demonstrates Plaintiff intends to prosecute this action.

Thus, the Motion for terminating sanctions is GRANTED.

IV.

Conclusion
& Order

Defendants Volkswagen Group of America, Inc., and Volkswagen of Garden Grove’s Motion to Impose Terminating and Monetary Sanctions is GRANTED as to the request for terminating sanctions.

Moving parties are ordered to give notice.